

5. Disqualification to hold and enjoy any office of honor, trust, or profit, under this state.

R.L. 1910, § 2084. Amended by Laws 1997, c. 133, § 10, eff. July 1, 1999; Laws 1999, 1st Ex.Sess., c. 5, § 1, eff. July 1, 1999.

NOTE: Laws 1998, 1st Ex.Sess., c. 2, § 23 amended the effective date of Laws 1997, c. 133, § 10 from July 1, 1998, to July 1, 1999.

§21-4. Crimes classified.

Crimes are divided into:

1. Felonies;
2. Misdemeanors.

R.L.1910, § 2085.

§21-5. Felony defined.

A felony is a crime which is, or may be, punishable with death, or by imprisonment in the penitentiary.

R.L. 1910, § 2086. Amended by Laws 1997, c. 133, § 11, eff. July 1, 1999; Laws 1999, 1st Ex.Sess., c. 5, § 2, eff. July 1, 1999.

NOTE: Laws 1998, 1st Ex.Sess., c. 2, § 23 amended the effective date of Laws 1997, c. 133, § 11 from July 1, 1998, to July 1, 1999.

§21-6. Misdemeanor defined.

Every other crime is a misdemeanor.

R.L.1910, § 2087. R.L.1910, § 2087.

§21-7. Objects of penal code.

This title specifies the classes of persons who are deemed capable of crimes, and liable to punishment therefor. This title defines the nature of various crimes and prescribes the kind and measure of punishment to be inflicted for each. The manner of prosecuting and convicting criminals is regulated by the code of criminal procedure.

R.L. 1910, § 2088. Amended by Laws 1997, c. 133, § 12, eff. July 1, 1999; Laws 1999, 1st Ex.Sess., c. 5, § 3, eff. July 1, 1999.

NOTE: Laws 1998, 1st Ex.Sess., c. 2, § 23 amended the effective date of Laws 1997, c. 133, § 12 from July 1, 1998, to July 1, 1999.

§21-8. Conviction must precede punishment.

The punishments prescribed by this chapter can be inflicted only upon a legal conviction in a court having jurisdiction.

R.L.1910, § 2090.

§21-9. Punishment of felonies.

Except in cases where a different punishment is prescribed by this title, or by some existing provision of law, every offense declared to be a felony is punishable by a fine not exceeding One Thousand Dollars (\$1,000.00), or by imprisonment in the State

Penitentiary not exceeding two (2) years, or by both such fine and imprisonment.

R.L. 1910, § 2090. Amended by Laws 1997, c. 133, § 13, eff. July 1, 1999; Laws 1998, 1st Ex.Sess., c. 2, § 1, emerg. eff. June 19, 1998; Laws 1999, 1st Ex.Sess., c. 5, § 4, eff. July 1, 1999.

NOTE: Laws 1998, 1st Ex.Sess., c. 2, § 23 amended the effective date of Laws 1997, c. 133, § 13 from July 1, 1998, to July 1, 1999.

§21-10. Punishment of misdemeanor.

Except in cases where a different punishment is prescribed by this chapter or by some existing provisions of law, every offense declared to be a misdemeanor is punishable by imprisonment in the county jail not exceeding one year or by a fine not exceeding five hundred dollars, or both such fine and imprisonment.

R.L.1910, § 2091.

§21-11. Special provisions as governing - Acts punishable in different ways.

If there be in any other provision of the laws of this state a provision making any specific act or omission criminal and providing the punishment therefor, and there be in this title any provision or section making the same act or omission a criminal offense or prescribing the punishment therefor, that offense and the punishment thereof, shall be governed by the special provisions made in relation thereto, and not by the provisions of this title. But an act or omission which is made punishable in different ways by different provisions of this title may be punished under any of such provisions, except that in cases specified in Sections 51.1 and 54 of this title, the punishments therein prescribed are substituted for those prescribed for a first offense, but in no case can a criminal act or omission be punished under more than one section of law; and an acquittal or conviction and sentence under one section of law, bars the prosecution for the same act or omission under any other section of law.

R.L. 1910, § 2092. Amended by Laws 1970, c. 199, § 1; Laws 1987, c. 226, § 1, operative July 1, 1987; Laws 1997, c. 133, § 14, eff. July 1, 1999; Laws 1999, 1st Ex. Sess., c. 5, § 5, eff. July 1, 1999; Laws 2019, c. 227, § 1, eff. Nov. 1, 2019.

NOTE: Laws 1998, 1st Ex. Sess., c. 2, § 23 amended the effective date of Laws 1997, c. 133, § 14 from July 1, 1998, to July 1, 1999.

§21-12. Repealed by Laws 1999, 1st Ex.Sess., c. 5, § 452, eff. July 1, 1999.

§21-12.1. Required service of minimum percentage of sentence - Effective date.

A person committing a felony offense listed in Section 30 of this act on or after March 1, 2000, and convicted of the offense shall serve not less than eighty-five percent (85%) of the sentence of imprisonment imposed within the Department of Corrections. Such person shall not be eligible for parole consideration prior to serving eighty-five percent (85%) of the sentence imposed and such person shall not be eligible for earned credits or any other type of credits which have the effect of reducing the length of the sentence to less than eighty-five percent (85%) of the sentence imposed. Added by Laws 1999, 1st Ex.Sess., c. 4, § 29, eff. July 1, 1999.

§21-13. Repealed by Laws 1999, 1st Ex.Sess., c. 5, § 452, eff. July 1, 1999.

§21-13.1. See the following versions:

OS 21-13.1v1 (HB 3936, Laws 2024, c. 59, § 5)
OS 21-13.1v2 (HB 1001, Laws 2025, c. 18, § 2)
OS 21-13.1v3 (SB 541, Laws 2025, c. 162, § 1)
OS 21-13.1v4 (SB 631, Laws 2025, c. 352, § 1)

§21-13.1v1. Required service of minimum percentage of sentence - Offenses specified.

Persons convicted of:

1. First degree murder as defined in Section 701.7 of this title;
2. Second degree murder as defined by Section 701.8 of this title;
3. Manslaughter in the first degree as defined by Section 711 of this title;
4. Poisoning with intent to kill as defined by Section 651 of this title;
5. Shooting with intent to kill, use of a vehicle to facilitate use of a firearm, crossbow or other weapon, assault, battery, or assault and battery with a deadly weapon or by other means likely to produce death or great bodily harm, as provided for in Section 652 of this title;
6. Assault with intent to kill as provided for in Section 653 of this title;
7. Conjoint robbery as defined by Section 800 of this title;
8. Robbery with a dangerous weapon as defined in Section 801 of this title;
9. First degree robbery as defined in Section 797 of this title;
10. First degree rape as provided for in Section 1111, 1114 or 1115 of this title;
11. First degree arson as defined in Section 1401 of this title;

12. First degree burglary as provided for in Section 1436 of this title;

13. Bombing as defined in Section 1767.1 of this title;

14. Any crime against a child provided for in Section 843.5 of this title;

15. Forcible sodomy as defined in Section 888 of this title;

16. Child sexual abuse material or aggravated child sexual abuse material as defined in Section 1021.2, 1021.3, 1024.1, 1024.2 or 1040.12a of this title;

17. Child prostitution as defined in Section 1030 of this title;

18. Lewd molestation of a child as defined in Section 1123 of this title;

19. Abuse of a vulnerable adult as defined in Section 10-103 of Title 43A of the Oklahoma Statutes;

20. Aggravated trafficking as provided for in subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

21. Aggravated assault and battery upon any person defending another person from assault and battery; or

22. Human trafficking as provided for in Section 748 of this title,

shall be required to serve not less than eighty-five percent (85%) of any sentence of imprisonment imposed by the judicial system prior to becoming eligible for consideration for parole. Persons convicted of these offenses shall not be eligible for earned credits or any other type of credits which have the effect of reducing the length of the sentence to less than eighty-five percent (85%) of the sentence imposed.

Added by Laws 1999, 1st Ex. Sess., c. 4, § 30, eff. July 1, 1999.

Amended by Laws 2000, c. 291, § 2, eff. Nov. 1, 2000; Laws 2001, c. 437, § 2, eff. July 1, 2001; Laws 2002, c. 22, § 7, emerg. eff.

March 8, 2002; Laws 2007, c. 199, § 1, eff. Nov. 1, 2007; Laws 2009, c. 234, § 117, emerg. eff. May 21, 2009; Laws 2011, c. 385, § 1, eff. Nov. 1, 2011; Laws 2014, c. 147, § 1, eff. Nov. 1, 2014, and Laws 2014, c. 231, § 1, eff. Nov. 1, 2014; Laws 2015, c. 290, § 1, eff. Nov. 1, 2015; Laws 2021, c. 121, § 1, eff. Nov. 1, 2021; Laws 2024, c. 59, § 5, eff. Nov. 1, 2024.

NOTE: Laws 2001, c. 428, § 2 repealed by Laws 2002, c. 22, § 34, emerg. eff. March 8, 2002.

NOTE: Laws 2014, c. 147, § 1 and Laws 2014, c. 231, § 1 made identical changes to this section.

§21-13.1v2. Required service of minimum percentage of sentence - Offenses specified.

Persons convicted of:

1. First degree murder as defined in Section 701.7 of this title;